

M/S Krishna Auto Pvt. Ltd. v. U.P.P.C.L.

Allahabad High Court · Division Bench · 17 September 2016 · WRIT - C No. - 44058 of 2016 · **Writ disposed; EE directed to redress grievance in accordance with law.**

HEADNOTE

On a writ that a completed application for electricity connection had not been released because of the lessor, the Division Bench, on the licensee's assurance that the grievance was being examined under the U.P. Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, disposed of the petition directing the Executive Engineer, EDD-II, PuVVNL, Varanasi, to look into and try to redress the grievance in accordance with law, preferably within six weeks. Entitlement to the connection was not decided.

FACTUAL SUMMARY

M/S Krishna Auto Pvt. Ltd., of Kapsethi, Varanasi, applied for grant of an electricity connection after fulfilling the pre-requisite formalities. The connection was not released on account of the lessor, Satendra Kumar. The company filed Writ-C No. 44058 of 2016 against U.P.P.C.L. and others. Counsel for the respondents assured the Division Bench that the grievance was being examined under the U.P. Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

new-connection-application

HOLDING

On the licensee's assurance that a grievance of non-release of an electricity connection was being examined under the U.P. Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, the Court disposed of the writ by directing the Executive Engineer, Electricity Distribution Division-II, Purvanchal Vidyut Vitaran Nigam Ltd., Varanasi, to look into the grievance and try to redress it in accordance with law, preferably within six weeks of receipt of a certified copy. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy On a writ that a completed application for electricity connection had not been released because of the lessor, the Division Bench, on the licensee's assurance that the grievance was being examined under the U.P. Electricity Act, 2003 and the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LESSOR'S OBJECTION BARRED RELEASE OF THE NEW CONNECTION, AND WHETHER THE PETITIONER WAS ENTITLED TO A CONNECTION

Writ disposed on assurance; the Executive Engineer was only directed to consider and redress in accordance with law.

¶ 1